

1 ENGROSSED SENATE
2 BILL NO. 1489

By: Pugh of the Senate

3 and

4 Caldwell (Chad) of the
5 House

6
7 An Act relating to schools; amending 70 O.S. 2021,
8 Section 6-189, as amended by Section 1, Chapter 92,
9 O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-189),
10 which relates to certification requirements for
11 superintendent and principal; adding requirement for
12 principal certification to include certain
13 professional education; amending 70 O.S. 2021,
14 Section 13-101, which relates to services for
15 children with disabilities; directing the State
16 Department of Education and public school districts
17 to comply with certain act; authorizing the
18 Department to expend certain funds; modifying
19 definition; providing certain rights to parents and
20 legal guardians of children with disabilities;
21 directing the Department to publish certain
22 information on its website; allowing the State Board
23 of Education to promulgate rules and update certain
24 policies and procedures; updating statutory
references; updating statutory language; providing an
effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-189, as
amended by Section 1, Chapter 92, O.S.L. 2024 (70 O.S. Supp. 2025,
Section 6-189), is amended to read as follows:

Section 6-189. A. The certification system required by the
Oklahoma Teacher Preparation Act as part of the new teacher

1 preparation system shall be competency-based. The competencies for
2 certification shall be integrated with competencies specified in
3 Section 6-185 of this title. By July 1, 1996, the State Board of
4 Education shall adopt general competencies for certification, and by
5 January 1, 1997, the Board shall have adopted full competencies and
6 implemented the certification system as required in ~~this act~~ the
7 Oklahoma Teacher Preparation Act. No higher education courses or
8 credit hours may be specified by the State Board of Education in
9 rules for certification. Nothing in the certification rules adopted
10 by the Board shall prohibit the Oklahoma State Regents for Higher
11 Education from adopting policies and procedures it deems appropriate
12 for coursework, grade point average, or credit hours for teacher
13 preparation at institutions in The Oklahoma State System of Higher
14 Education.

15 B. The certification requirements for a school principal not
16 alternatively certified under subsection D of this section shall
17 include not less than:

- 18 1. Completion of a standard master's degree;
- 19 2. Completion of a program in education administration approved
20 by the ~~Oklahoma~~ Commission for ~~Teacher Preparation~~ Educational
21 Quality and Accountability with an emphasis on curriculum,
22 instruction, and building-level leadership skills. The requirement
23 in this paragraph shall not apply to any person who has completed a
24 master's degree program in education that included competencies that

1 are substantially equal to those listed in this paragraph and if the
2 degree was completed prior to July 1, 2005;

3 3. a. Any other professional education and requirements as
4 may be fixed by the State Board of Education.

5 b. The requirements of this paragraph shall include
6 professional education specific to the Individuals
7 with Disabilities Education Act (IDEA) and applicable
8 state laws related to the provision of special
9 education services which shall include at a minimum:

10 (1) federal and state laws and regulations related to
11 the provision of special education services,

12 (2) procedural safeguards and parental rights,

13 (3) child find obligations and evaluation
14 requirements,

15 (4) development, implementation, and monitoring of
16 individualized education programs (IEPs),

17 (5) discipline of students with disabilities, and

18 (6) due process hearings, complaint procedures, and
19 compliance obligations of public school districts
20 and administrators.

21 c. The State Board of Education shall promulgate rules
22 providing for approval of professional education
23 providers and courses, documentation and reporting
24

1 requirements, and procedures for verifying completion
2 of the required professional education.

3 d. Professional education completed pursuant to this
4 paragraph may be used to satisfy professional
5 development or continuing education requirements for
6 certification renewal;

7 4. A passing score on the subject area competency examination
8 required in Section 6-187 of this title; and

9 5. A minimum of two (2) years of successful teaching experience
10 in public or private schools accredited by the State Board of
11 Education or by the proper accrediting authority of another state of
12 the United States.

13 C. The certification requirements for a superintendent of
14 schools not alternatively certified under subsection D of this
15 section shall include not less than:

16 1. Certification as a school principal or completion of the
17 certification requirements for a school principal as set forth in
18 subsection B of this section;

19 2. Completion of a program in education administration approved
20 by the ~~Oklahoma~~ Commission for ~~Teacher Preparation~~ Educational
21 Quality and Accountability with an emphasis on district-level
22 leadership skills, and which shall include the following
23 competencies:

24 a. instructional leadership,

- b. organizational leadership⁷, including education finance, education law, and risk management,
- c. collaborative and community leadership, and
- d. ethical leadership.

The requirement in this paragraph shall not apply to any person who has completed ~~an Oklahoma~~ a Commission for Teacher Preparation Educational Quality and Accountability approved Master's Degree in Education Administration ~~master's degree in education administration~~ or has completed a program in education that included competencies that are substantially equal to those listed in this paragraph, and if the degree or program was completed between the effective date of this act and July 1, 2005;

3. Any other professional education and requirements as may be fixed by the State Board of Education;

4. A passing score on the subject area competency examination required in Section 6-187 of this title; and

5. A minimum of two (2) years of administrative experience in public or private schools accredited by the State Board of Education or by the proper accrediting authority of another state of the United States.

D. 1. The standards for alternative certification for superintendents of schools and principals shall include:

- a. the completion of a standard master's degree,

- b. two (2) years of relevant work experience in a supervisory or administrative capacity,
- c. a passing score on the subject area competency examination required in Section 6-187 of this title, and
- d. filing with the director of teacher education at an Oklahoma accredited institution of higher education a plan for completing an alternative administrative preparation program within three (3) years. Relevant work experience and coursework may be considered and applied to complete the plan.

2. An alternative certificate for superintendent of schools and principals shall not exceed three (3) years and shall not be renewable.

3. Upon successful completion of an alternative administrative preparation program by a participant, the State Board of Education shall issue a standard certificate for superintendent or principal, as applicable, to the applicant.

4. Any person participating in an alternative certification program for superintendent of schools and principals on ~~the effective date of this act~~ July 1, 2005, shall be subject to the program requirements in effect prior to ~~the effective date of this act~~ July 1, 2005.

1 E. The certification requirements for a superintendent of a
2 technology center school district shall include not less than a
3 standard master's degree, any other professional education
4 requirements as may be fixed by the State Board of Education, and a
5 minimum of four (4) years teaching, supervisory, or administrative
6 experience, which may include teaching of full-time adult students,
7 in a technology center school district. A person meeting the
8 requirements set forth in subsection C of this section shall be
9 eligible for a certificate for superintendent of a technology center
10 school district.

11 F. The State Board of Career and Technology Education shall
12 promulgate rules for a certification system specifically for
13 teachers and instructors in the technology center school districts.
14 The system shall be competency-based. The competencies for
15 certification shall include industry-based skills, standards, and
16 certifications.

17 G. Certificates issued by the State Board of Education may be
18 revoked by the State Board of Education for willful violation of any
19 rule of the Board or of any federal or state law or other proper
20 cause but only after sufficient hearing has been given before the
21 Board.

22 H. Teaching in a Head Start program or programs shall be used
23 for renewal of a standard teaching certificate.

24

1 SECTION 2. AMENDATORY 70 O.S. 2021, Section 13-101, is
2 amended to read as follows:

3 Section 13-101. A. The State Department of Education and the
4 public school districts in this state shall comply with provisions
5 of the Individuals with Disabilities Education Act (IDEA), P.L. No.
6 108-446, and the Department shall be authorized to expend federal
7 funds to provide special education and related services necessary
8 for children with disabilities. "Children with disabilities" shall
9 mean children, as defined by IDEA, who are three (3) years of age
10 through twenty-one (21) years of age.

11 B. 1. The ~~several~~ school districts of ~~Oklahoma~~ in this state
12 are hereby authorized to provide special education and related
13 services necessary for children with disabilities ~~as hereinafter~~
14 ~~defined.~~ Two or more school districts may establish cooperative
15 programs of special education for children with disabilities when
16 such arrangement is approved by the State Board of Education. Funds
17 may be expended for school services for an additional period during
18 the summer months for approved programs for qualified children with
19 disabilities, provided their individualized education program
20 ~~(I.E.P.)~~ (IEP) states the need for extended school year special
21 education and related services. ~~Children with disabilities shall~~
22 ~~mean children, as defined in the Individuals with Disabilities~~
23 ~~Education Act (IDEA), P.L. No. 105-17, who are three (3) years of~~
24 ~~age.~~

1 ~~Provided, on~~ 2. On and after July 1, 1991, children from ~~age~~
2 birth ~~through two (2) years (0-36 months) of~~ until they reach the
3 age of three (3) who meet the eligibility criteria specified in
4 Section 13-123 of this title~~7~~, shall be served pursuant to the
5 provisions of the Oklahoma Early Intervention Act. The attendance
6 of ~~said~~ such children in special education classes shall be included
7 in the average daily membership computations for State Aid purposes.

8 C. The State Board of Education is authorized to modify and
9 redefine by regulation the eligibility definitions whenever such
10 modification is required to receive federal assistance under the
11 ~~Individuals with Disabilities Education Act (IDEA), P.L. No. 105-17~~
12 provisions of IDEA. Rules developed pursuant to Section 18-109.5 of
13 this title shall provide for such modification and revised
14 definitions.

15 D. It shall be the duty of each school district to provide
16 special education and related services for all children with
17 disabilities as herein defined who reside in that school district in
18 accordance with ~~the Individuals with Disabilities Education Act~~
19 ~~(IDEA), P.L. No. 105-17~~ IDEA. This duty may be satisfied by:

20 1. The district directly providing special education for such
21 children;

22 2. The district joining in a cooperative program with another
23 district or districts to provide special education for such
24 children;

1 3. The district joining in a written agreement with a private
2 or public institution, licensed residential child care and treatment
3 facility, or day treatment facility within such district to provide
4 special education for children who are deaf or hard-of-hearing,
5 children who are blind or partially blind, or other eligible
6 children with disabilities; or

7 4. Transferring eligible children and youth with disabilities
8 to other school districts which accept them and provide special
9 education and related services for such children, with the district
10 in which the child resides paying tuition ~~therefor as hereinafter~~
11 ~~provided~~. For those students who transfer pursuant to the
12 provisions of the Education Open Transfer Act, the receiving school
13 district shall assume all responsibility for education and shall
14 count the student for federal and state funding purposes according
15 to the provisions of subsection B of Section 13-103 of this title.

16 E. The parent or legal guardian of a child with disabilities
17 shall have the right to:

18 1. Review all documents including, but not limited to,
19 evaluations, reports, progress monitoring data, work samples,
20 behavior logs, and discipline records, at least five (5) business
21 days prior to any meeting regarding an IEP, a meeting conducted
22 pursuant to Section 504 of the Rehabilitation Act of 1973, or any
23 other meeting regarding accommodations for a child with a
24

1 disability. The parent or legal guardian may agree in writing to a
2 review period of fewer than five (5) business days; and

3 2. Bring any individual of the parent or legal guardian's
4 choosing including an individual with unique knowledge or expertise
5 regarding the child to any meeting with school personnel including,
6 but not limited to, meetings regarding an IEP, meetings conducted
7 pursuant to Section 504 of the Rehabilitation Act of 1973, and
8 meetings concerning the academics, behavior, discipline, attendance,
9 health, or any other matter involving the child with a disability.

10 F. The Department shall publish on its website information
11 about the dispute resolution options available to parents and legal
12 guardians of children with disabilities, which shall include:

13 1. IEP facilitation;

14 2. Mediation;

15 3. Due process; and

16 4. State complaint procedure.

17 G. The State Board of Education may promulgate rules and update
18 relevant special education policies and procedures to comply with
19 the provisions of this section.

20 SECTION 3. This act shall become effective July 1, 2026.

21 SECTION 4. It being immediately necessary for the preservation
22 of the public peace, health, or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 10th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives